

July 19, 2007



U.S. Department  
of Transportation

East Building, PHH – 30  
1200 New Jersey Avenue, Southeast  
Washington, D.C. 20590

**Pipeline and Hazardous  
Materials Safety Administration**

DOT-SP 14484

|                                |
|--------------------------------|
| EXPIRATION DATE: June 30, 2009 |
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(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: E Ink Corporation  
Cambridge, MA
2. PURPOSE AND LIMITATION:
  - a. This special permit authorizes the transportation in commerce of certain Class 3 materials in non-DOT specification, non-bulk, ASME Code "U" stamped pressure vessels. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
  - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
  - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.202 and 173.203 in that the use of non-DOT specification packaging is not authorized except as specified herein.
5. BASIS: This special permit is based on the application of E Ink Corporation dated February 5, 2007 and additional

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information dated March 9, 2007, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| Hazardous Materials Description |                           |                       |               |
|---------------------------------|---------------------------|-----------------------|---------------|
| Proper Shipping Name            | Hazard Class/<br>Division | Identification Number | Packing Group |
| Flammable liquids, n.o.s.       | 3                         | UN1993                | II, III       |
| Printing ink, flammable         | 3                         | UN1210                | II, III       |
| Petroleum distillates, n.o.s.   | 3                         | UN1268                | II, III       |

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed are ASME Code "U" stamped pressure vessels conforming to the following:

(1) A jacketed 360 liter water capacity, stainless steel pressure vessel with a maximum allowable working pressure (MAWP) of 80 psig manufactured in accordance with Allegheny Bradford Corporation drawing number 175700, Revision C on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA) or

(2) A jacketed 100 liter water capacity, stainless steel pressure vessel with a MAWP of 25 psig manufactured in accordance with Allegheny Bradford Corporation drawing number 178900 on file with the OHMSPA.

(3) The pressure vessels described above must be securely overpacked in a wooden crate prior to shipment.

b. OPERATIONAL CONTROLS -

(1) E-Ink Inc's customers are authorized to use this special permit to return the empty packagings to E-Ink Inc.

(2) When transported in accordance with the requirements of § 173.28(b)(7), the non-DOT

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specification pressure vessels may be reused without being leakproofness tested.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Each pressure vessel must be plainly and durably marked "DOT-SP 14484" as specified in § 172.301(c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



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for Theodore L. Willke  
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at [http://hazmat.dot.gov/sp\\_app/special\\_permits/spec\\_perm\\_index.htm](http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm). Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.  
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